

23STCV16779 23STCV16779

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-09-22

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MOTION TO COMPEL

PLAINTIFF'S DEPOSITION

Motion filed on August 6, 2026.

MOVING PARTY: Defendant, Kent Tanaka

RESPONDING PARTY: Plaintiff, Armando Arturo Aragon

NOTICE: OK.

RELIEF REQUESTED: Defendant seeks an order compelling Plaintiff to appear for deposition and \$725 in monetary sanctions against Plaintiff and Plaintiff's counsel.

RULING: Granted in part. Monetary sanctions awarded in the reduced amount of \$380 against Plaintiff only.

BACKGROUND

On July 18, 2023, Armando Arturo Aragon (Plaintiff) filed the Complaint against Kathleen Tanaka and Kent Tanaka (Defendant), alleging negligence and negligence

per se arising from a July 19, 2021 motor vehicle incident. On August 6, 2026, Defendant filed this motion with the supporting declaration of Christopher B. Townsley and Exhibits A through C. No timely opposition was filed. On September 16, 2026, Defendant filed a Notice of Non-Opposition.

DISCUSSION

Deposition

A party may move to compel attendance and testimony when a deponent fails to appear or proceed after service of a deposition notice without having served a valid objection under section 2025.410. (Code Civ. Proc., § 2025.450, subd. (a).) The motion must include a meet-and-confer declaration or, where applicable, a declaration showing inquiry about the nonappearance. (Id., subd. (b)(2).)

Here, Defendant made several attempts to take Plaintiff's deposition. (Townsley Decl. ¶ 2.) After Plaintiff did not appear for a February 23, 2026 deposition, Defendant noticed the deposition for April 7, 2026. (Ibid.) Plaintiff's counsel objected to that date because of a trial conflict and offered April 29, 2026 as an available date. (Id., Ex. A.) Defendant then served a Second Amended Notice setting Plaintiff's remote deposition for April 29, 2026 at 10:00 a.m. (Id., Ex. B.) On April 27, 2026, Plaintiff's counsel cancelled the agreed deposition and did not provide another date. (Id. ¶ 2.) Defendant thereafter sought a new firm date and, on July 6, 2026, sent a final meet-and-confer request advising that a motion to compel would follow if no date was provided. (Id., Ex. C.) Plaintiff's counsel did not respond. (Id. ¶ 2.) On the record presented, Plaintiff did not serve a valid objection to the April 29 deposition notice or seek a protective order. Defendant has established grounds to compel Plaintiff's deposition under section 2025.450, subdivision (a), and the record demonstrates sufficient meet-and-confer efforts under subdivision (b)(2).

Monetary Sanctions

If a motion to compel attendance is granted, the court shall impose a monetary sanction in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the person subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanctions

unjust. (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Here, Defendant requests \$725 in sanctions. Counsel bills at \$160 per hour and claims 2.5 hours preparing the motion, additional time associated with preparing for and appearing at the hearing, a \$60 filing fee, and a \$105 court reporter appearance fee. (Townsley Decl. ¶ 5.) The Court finds the \$160 hourly rate reasonable but reduces the compensable attorney time to one hour for preparation and one hour for the hearing. The Court declines to award the \$105 court reporter fee because the declaration does not sufficiently identify or substantiate that expense. No opposition was filed, thus Plaintiff has made no showing of substantial justification or other circumstances making sanctions unjust. Sanctions are awarded against Plaintiff in the reduced amount of \$380, consisting of two hours at \$160 per hour plus the \$60 filing fee.

CONCLUSION

The motion is granted in part. Plaintiff shall appear for deposition within 30 days after service of notice of this ruling. The parties shall meet and confer regarding the date. If they cannot agree, Defendant shall select a date within that period and serve an amended deposition notice stating the date, time, and manner of appearance.

Plaintiff shall pay Defendant \$380 in monetary sanctions within 30 days after service of notice of this ruling. The request for monetary sanctions against Plaintiff's counsel is denied.